

23STCV06314 23STCV06314

County: los-angeles

Division: Civil Law and Motion

Department: 511

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Case Number: 23STCV06314 Hearing Date: August 3, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

4, 2026

CASE NAME: State

of California ex rel. Leo Goldberg v. Tetra Tech, Inc.

CASE NO.: 23STCV06314

MOTION

FOR NEW TRIAL, OR ALTERNATIVELY, VACATE THE JUDGMENT

MOVING PARTY: Plaintiff

and relator Leo Goldberg

RESPONDING PARTY(S): Defendant Tetra Tech, Inc.

REQUESTED RELIEF:

1. An

order granting a new trial after the court's sustaining Defendant's demurrer to the fourth amended complaint without leave to amend;

2. An

order vacating the May 27, 2026 ruling sustaining the demurrer without leave to amend and granting Plaintiff leave to file a proposed fifth amended complaint.

TENTATIVE RULING:

1. Motion

for new trial is GRANTED;

2. Plaintiff

to file their proposed Fifth Amended Complaint within 7 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 22, 2023, Plaintiff Leo Goldberg, individually and on behalf of the State of California (Plaintiff), filed a qui tam Complaint against Defendant Tetra Tech, Inc. (Defendant) with three causes of action for: (1) Violations of California False Claims Act; (2) Violation of Licensing Regulations; and (3) Unfair Business Practices.

On May 23, 2023, Plaintiff filed a first amended complaint.

On March 14, 2024, Plaintiff filed a second amended complaint.

On August 12, 2025, the parties filed a Stipulation and Order for Leave to amend the complaint which the court GRANTED.

On August 20, 2025, Plaintiff filed a third amended complaint (TAC).

On October 23, 2025, Defendant filed a demurrer with motion to strike to the TAC. The court SUSTAINED the demurrer with leave to amend and DENIED the motion to strike as moot.

On December 31, 2025, Plaintiff filed the operative fourth amended complaint (4AC).

On March 2, 2026, Defendant filed a demurrer with motion to strike which the court SUSTAINED in full without leave to amend and denied as

moot.

On May 27, 2026, the court ordered the matter dismissed with prejudice.

On June 11, 2026, Plaintiff filed a notice of intent to move for new trial with supporting memorandum. On June 23, 2026, Defendant filed an opposition. On June 24, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

New Trial

“The verdict may be vacated and any other decision may be modified or vacated, in whole or in part, and a new or further trial granted on all or part of the issues, on the application of the party aggrieved, for any of the following causes, materially affecting the substantial rights of such party: 1.

2.

Irregularity

in the proceedings of the court, jury or adverse party, or any order of the court or abuse of discretion by which either party was prevented from having a fair trial. 3.

4.

...

5.

Newly

discovered evidence, material for the party making the application, which he could not, with reasonable diligence, have discovered and produced at the trial.⁴ 6.

7.

...

Insufficiency

of the evidence to justify the verdict or other decision, or the verdict or other decision is against law.¿¿

¿¿

Error

in¿law,¿occurring at the trial and excepted to by the party making the application.¿¿

¿¿

(Code of Civ. Proc. (CCP) § 657.)¿¿

A motion for a new trial must be filed and served either

“(1) [a]fter¿the decision is rendered and before the entry of judgment” or “(2) [w]ithin¿15 days of the date of mailing notice of entry of judgment by the clerk of the court pursuant to Section 664.5, or service upon him or her by any party of written notice of entry of judgment, or within 180 days after the entry of judgment, whichever is earliest.”¿ (Code of Civ. Proc. § 659(a).)¿

These time limits are jurisdictional and cannot be extended by stipulation or court order.¿ (Code of Civ. Proc. § 659(b).)¿

A motion for new trial is appropriate after

a demurrer is sustained without leave to amend. (Carney v. Simmonds (1957) 49 Cal.2d 84, 91 [“[T]here is no difference between a judgment on the pleadings and one after the sustaining of a demurrer; they are both judgments on the pleadings.”].)

Vacate

Judgment

“A judgment or

decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different

judgment: [¶] 1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in

such case when the judgment is set aside, the statement of decision shall be amended and corrected.”

(CCP § 663.)

ANALYSIS:

Request for
Judicial Notice

The court GRANTS Defendant's request for judicial notice.
(Evid. Code § 452(d), (h).)

New Trial

Plaintiff contends relief is warranted because the court applied incorrect law. Specifically, the court applied a broader version of the public disclosure rule to support its ruling sustaining the demurrer to the 4AC without leave to amend. Plaintiff contends the current statute is narrower.

Defendant concedes this point but argues it is harmless error since Plaintiff's proposed fifth amended complaint still lacks particularity supporting his claims and it is therefore futile for the court to allow further amendment.

Plaintiff replies that the court did not reach the particularity arguments in the underlying demurrer – only the public disclosure rule. As such, it is improper at this junction for the court to make sure particularity rulings now.

CCP 657(7) provides for a new trial due to: “Error in law, occurring at the trial and excepted to by the party making the application.” (See also *Tun v. Wells Fargo Dealer Services, Inc.* (2016) 5 Cal.App.5th 309, 323.)

After reviewing the briefings, the ruling on the demurrer, and the relevant authority, Plaintiff is correct.

Gov. Code § 12652(d)(3)(A) provides: “The court shall dismiss an action or claim under this section, unless opposed by the Attorney

General or prosecuting authority of a political subdivision, if substantially the same allegations or transactions as alleged in the action or claim were publicly disclosed in any of the following: [¶] (i) A criminal, civil, or administrative hearing in which the state or prosecuting authority of a political subdivision or their agents are a party. [¶] (ii) A report, hearing, audit, or investigation of the Legislature, the state, or governing body of a political subdivision. [¶] (iii) The news media." Additionally, this paragraph does not apply if "the person bringing the action is an original source of the information." (Gov. Code § 12652(d)(3)(B).)

The court relied on State of California ex rel. Standard Elevator Co., Inc. v. West Bay Builders, Inc. (2011) 197 Cal.App.4th 963 (West Bay Builders) in its analysis of the public disclosure rule. (May 27, 2026 Final Ruling on Demurrer.) West Bay Builders applied a different version of the pertinent Government Code section concerning the public disclosure rule. (West Bay Builders, supra, 197 Cal.App.4th at p. 975.) The version of that section applicable when West Bay Builders was decided stated: "No court shall have jurisdiction over an action under this article based upon the public disclosure of allegations or transactions in a criminal, civil, or administrative hearing, in an investigation, report, hearing, or audit conducted by or at the request of the Senate, Assembly, auditor, or governing body of a political subdivision, or by the news media, unless the action is brought by the Attorney General or the prosecuting authority of a political subdivision, or the person bringing the action is an original source of the information." (Gov. Code § 12652(d)(3)(A) [Effective January 1, 2010 to December 31, 2012].) As Plaintiff points out, and Defendant concedes, this prior version is much broader than the current version of the statute. As such, the court's reliance on West Bay Builders' interpretation was an error in law.[1]

Next, this was an issue objected to below. (See RJN, Exhibit F [Transcript of Proceedings], 9:15-25 [discussing current version of the statute requiring consent of the Attorney General to dismiss].) Again, Defendant concedes this issue.

Finally, since the court did not otherwise develop the sufficiency of the allegations outside of the public disclosure rule, futility of amendment seems premature.

Therefore, the relief sought is warranted.

Accordingly, the court GRANTS Plaintiff's motion for new trial.

CONCLUSION:

For
the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for new trial is GRANTED;

2. Plaintiff

to file their proposed Fifth Amended Complaint within 7 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 3, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

Put differently, West Bay Builders
discussion of the original source exception still applies. The error was this
court's reliance on that case to interpret the entire public disclosure rule
since the current statute provides a first step before reaching the original
source exception – whether the “state or prosecuting authority of a political
subdivision or their agents are a party.” (Gov. Code § 12652(d)(3)(A) [Effective
January 1, 2022.]